TENTATIVE RULINGS

DEPT. CX103
(657-622-5303)

Judge David A. Hoffer
July 06, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at https://www.occourts.org/media-relations/aci.html. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2023-01337693 McArthur vs. Wyndham Vacation Ownership, Inc.	The tentative ruling is to continue the Final Report Hearing to August 10, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus

		may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. IT IS ORDERED THAT within five (5) days of this ruling, all uncashed check funds shall be distributed by the settlement administrator to the State Controller of California's Unclaimed Property Fund in accordance with the settlement approved by the court. (Settlement ¶ 6(E).) Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2019-01046637 Jones vs. Liberty Dental Plan, Inc.	Plaintiff Micshall Jones ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement is **GRANTED IN PART**. The court concludes that the $1,500,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • $450,000.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the $525,000.00 requested; • $17,628.94 to plaintiff's counsel for plaintiff's litigation costs, reduced from the $17,651.54 requested; • $5,000.00 to Plaintiff as enhancement award, reduced from the $15,000.00 requested; • $9,000.00 to Simpluris, the settlement administrator, as requested; and • $168,750.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is $849,621.06. The Final Accounting hearing is set for March 22, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues.

		Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling, with proper formatting as the current [REVISED PROPOSED] FINAL APPROVAL ORDER AND JUDGMENT (ROA 256) has formatting errors, and must be amended to expressly state that Carol Dyer and Theresa Vigil, who submitted Requests for Exclusion, are not bound by the judgment with respect to the class claims. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
3	30-2024-01420491 Hassan vs. F2 TPS, LLC.	The tentative ruling is to continue the hearing on Plaintiff Malek Taisir Hassan's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff has not submitted his attorneys' bills or a detailed hourly breakdown of his attorneys' hours to support the court's review of plaintiff's attorneys' fees request. Plaintiff has also failed to provide the number of years of relevant experience for the following timekeepers to support the reasonableness of their hourly rates: Robert Wilson, Vedang J. Patel, Megan Lazar, Joseph Rocha, Alexa R. Guzman, Bradford Smith, and Katherine Willis. Plaintiff is required to provide sufficient information to support the court's lodestar cross-check of the fee request. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size.

		The court disallows the attorney costs amount claimed for postage, copies, scans, and faxes because the court considers these cost items to be properly part of attorney overhead. $86.95 should be deducted from the attorney costs request. The parties have not provided the court with any declaration from PAGA Counsel (David B. Bibiyan and Vedang J. Patel) as to any potential conflict of interest as to the proposed cy pres recipient, as required by CCP §382.4. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved and so a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on the PAGA Period the parties are using. Paragraph 5.1 of the settlement agreement includes a release for the following claims for PAGA penalties: "failure to pay vacation upon separation, sick leave violations, failure to indemnify for necessary expenses, failure to provide suitable seats, failure to provide adequate sanitation facilities, unlawful background checks, improperly relying on prior salary history, unlawful confidentiality policies, restricting employees from discussing wages and working conditions, preventing employees from using skills and experience gained during employment, preventing employees from disclosing violations of law, and preventing employees from engaging in lawful conduct during non-work hours." However, Plaintiff provides no information as to defendant's potential exposure for the violations alleged. Plaintiff must provide the court with information showing what potential outcome aggrieved employees are giving up in exchange for this settlement. Further, the release in the cover letter does not match the language of the release in the settlement agreement. The language must be consistent. The cover letter must explain that no claims for unpaid or underpaid wages have settled, and that this settlement is without prejudice to the pursuit of any such claims. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the

		settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
4	30-2025-01476450 Benitez vs. American Caregivers, Inc.	The tentative ruling is to continue the hearing on Plaintiff Rosa Marin Benitez's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff has not explained how this settlement affects related case, *Rosa Marin Benitez v. American Caregivers, Inc., et al.*, OCSC Case No. 2025-01452435-CU-OE-CXC (Notice of Related Case [ROA 17].) The moving papers do not include a copy of the January 13, 2025 LWDA letter. (Hawkins Dec. ¶ 3.) The court needs a copy of the letter to verify that the settlement terms are consistent with the notice provided to the LWDA. Plaintiff's counsel states that the parties reached a settlement after the July 17, 2025 mediation, but the settlement agreement states that a second mediation was held on October 28, 2025, and the settlement agreement was resolved after the second mediation. (Hawkins Dec. ¶¶ 5-6; Settlement § II(3).) Plaintiff must provide further clarification as to this inconsistency.

		The settlement agreement does not state whether the settlement is reversionary or non-reversionary. An invoice from the Administrator is required to support the $5,400.00 Administrator fee request. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved, and so a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on whichever PAGA Period the parties are using. Plaintiff has not submitted her attorneys' bills or a detailed hourly breakdown of her attorneys' hours to support the court's review of plaintiff's attorneys' fees request. Plaintiff must also provide the experience level for each attorney to support the reasonableness of the hourly rates for each timekeeper. Plaintiff is required to provide sufficient information to support the court's lodestar cross-check of the fee request. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The court disallows the attorney costs amount claimed for postage, copies, scans, and faxes because the court considers these cost items to be properly part of attorney overhead. $21.98 in postage costs should be deducted from the attorney costs request. An enhancement award of $5,000 is sufficient and proper for the settlement of this size, and in light of plaintiff's contribution to the case. The court will not issue an injunction against the aggrieved employees. Res judicata and collateral estoppel arguments should provide defendant with sufficient protection against facing these same claims again. The phrase on Page 1 of the cover letter: "Upon entry of the order approving the Settlement, any PAGA Settlement Member covered by the Settlement will be barred from proceeding with any claim

		released by the Settlement." must be amended to state instead: "Upon entry of the order approving the Settlement, any PAGA Settlement Member covered by the Settlement may be barred as a matter of law from proceeding with any claim released by the Settlement." The cover letter must explain that no claims for unpaid or underpaid wages have settled, and that this settlement is without prejudice to the pursuit of any such claims. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
5	30-2025-01495141 Doan vs. Secure Guard Security Services, Inc.	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff Quan M. Doan's motion for approval of his individual-only PAGA settlement and request for dismissal with prejudice of his individual-only claims. Having considered all of the papers filed in this matter, plaintiff's motion for approval is **GRANTED**, as follows: $13,375.00 to plaintiff (including $875.00 for individual PAGA penalties); $12,500.00 for attorneys' fees and costs; and $1,625.00 for PAGA penalties to the LWDA. The parties and counsel are ordered to administer the settlement, including disbursement of the PAGA penalties, in accordance with the settlement agreement (ROA 72 Ex. 1). The court retains jurisdiction over this matter pursuant to Civil Procedure Code section 664.6 to enforce the settlement until performance in full of the terms of the settlement.

		Plaintiff's request for dismissal with prejudice of all claims is **GRANTED**. The operative complaint (ROA 2) did not allege any PAGA claims on behalf of aggrieved employees other than plaintiff, and this order and judgment shall have no impact on any such claims. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
6	30-2023-01304470 Spencer vs. Bel Aire Hospitality LLC	Plaintiffs Gregory Edgar Spencer and Jennifer Lynn Woodruff's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement is **GRANTED**. A Final Approval Hearing is set for December 7, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs are ordered to provide notice of this ruling to the LWDA and Defendant.
7	30-2023-01336661 Tai vs. Adient Aerospace, LLC	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a $560,000 class action and PAGA settlement. The motion for preliminary approval of the class action and PAGA settlement is **GRANTED** as to the current version of the parties' settlement agreement, as amended. The court also approves the current version of the notice. The motion for final approval will be heard on December 14, 2026 at 1;30 p.m. in Department CX103. Moving papers are due 16 days prior to the hearing. Plaintiff is ordered to give notice of this court's ruling, including to the LWDA, within 10 calendar days, and to file a proof of service.

8	30-2023-01342909 Ruvalcaba vs. Modified Plastics, Inc.	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a $750,000 class action and PAGA settlement. The motion for preliminary approval of the class action and PAGA settlement is **GRANTED** as to the current version of the parties' settlement agreement, as amended. The court also approves the current version of the notice. The motion for final approval shall be heard on December 14, 2026 at 1:30 p.m. in Department CX103. Moving papers are due 16 days prior to the hearing. The proposed order and judgment should be revised consistent with the above. Additionally, the following revisions should also be made: 1. Add "Assigned for all purposes to: Hon. David A. Hoffer, Dept. CX103" between the case number and the document title on the caption page. 2. In the non-numbered, introductory paragraph on page 1, the amendment to the settlement is misidentified as ROA 109. Replace ROA 109 with the correct citation, i.e., ROA 116. 3. In paragraph 5, the amendment to the settlement is misidentified as ROA 109. However, as no clean version of the notice has been filed, simply delete "attached to the Declaration of Heather Davis ROA 109 and" from this paragraph, as no reference to the ROA is needed. Plaintiff is ordered to give notice of this court's ruling, including to the LWDA, within 10 calendar days and to file a proof of service.
9	30-2025-01485295 Martinez vs. Fluidmaster, Inc.	The tentative ruling is to continue Plaintiff Norma Martinez's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 9, 2026 at 1:30 p.m.

		Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The Class Period and PAGA Periods are defined as ending on October 18, 2025. (Settlement ¶¶ 1.11, 1.31.) However, the escalator clause in Paragraph 7.0 of the settlement agreement provides for the option to either increase the settlement amount or change the Class Period (and therefore the PAGA Period) such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members and aggrieved employees or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice and have the class notice include the adjusted end date to avoid being sent to non-participants. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage. The administrator invoice does not include the cost of Spanish translation of the notice. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an

		explanation of why the figure is not at least 33 1/3% is required. The settlement agreement and class notice state that the Administrator will resolve any workweek disputes. (Settlement ¶ 6.12.2; *see also* Class Notice at p. 5 [§ IV(7)].) The documents should reflect instead that while the Administrator and the parties will attempt to resolve any such dispute, the court ultimately will decide any unresolved dispute. The following changes must be made to the class notice: • Putative class members and aggrieved employees may object to the amount allocated to PAGA penalties. Therefore, on Page 2 of the class notice, the phrase "Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement" in column 1 of the table, must be amended to state: "Participating Class Members Can Object to the Class Settlement." Further the statement "Participating Class Members have the right to object to any of these deductions except the PAGA penalties." in Section IV(2) on Page 4 of the class notice should be amended to state: "Participating Class Members have the right to object to any of these deductions." • The phrase "Court Approved Deductions from Gross Settlement" in Section IV(2) on Page 4 of the class notice should be amended to state "Deductions from Gross Settlement Subject to Approval by the Court." Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.

10	30-2020-01141042 Yeomans vs. Walgreen Co.	Defendants The Kroger Co. and Walgreen Co.'s (collectively, "Defendants") Motion for Sanctions Pursuant to CCP § 128.5 in the Amount of $49,800 against The Wilshire Law Firm, Thiago M. Coelho, Esq. and Jesenia Martinez, Esq. (collectively, "Plaintiffs' Counsel") is **DENIED**. The court **SUSTAINS** Plaintiffs' Objection No. 1 to the Declaration of Melanie A. Ayerh on the grounds that the statement lacks personal knowledge and is speculative. The court **OVERRULES** Plaintiffs' hearsay objections as to the Ayerh Declaration and the Declaration of Anthony G. Hopp, as the statements are not offered from the truth of the matters asserted. The court **OVERRULES** Plaintiffs' objections to the Hopp Declaration on the grounds that Mr. Hopp is not admitted pro hac vice, as Plaintiffs provide no authority requiring such admission for his declaration to be admissible. The court **OVERRULES** all other remaining objections, including objections to statements that are irrelevant to the court's ruling. In this Motion for Sanctions, Defendants seek monetary sanctions against Plaintiffs' counsel based on alleged misrepresentations to the court and to Defendants' counsel that delayed dismissal of these actions. However, the record reflects that Plaintiffs' counsel faced a difficult circumstance being unable to obtain authorization from all of their clients to dismiss the subject actions, and simply complied with court orders and their ethical obligation to their clients to proceed with the action absent such authorization. This action is related to two other actions: *Mier v. CVC Health*, OCSC Case No. 30-2020-01141024, and *Amendola-Gross v. The Kroger Co.*, OCSC Case No. 30-2020-01141036. (ROA 42.) This action was stayed on December 11, 2020, pending the outcome of the earlier-filed, and substantively identical, related case of *Mier vs. CVS Health*, OCSC Case No. 30-2020-01141024, which was removed to federal court. (ROA 87.) On July 10, 2025, the Ninth Circuit affirmed the federal district court's dismissal of *Mier* with prejudice. (*See Mier v. CVS Pharmacy, Inc*. (9th Cir. July 10, 2025) No. 24-482, 2025 WL 1905109 at *1.) At the December 3, 2025 review hearing, the Court and counsel discussed how the remaining two state cases would proceed in light of the *Mier* ruling, and the court continued the review hearing at the parties' request. (ROA 160.) Plaintiffs'

		counsel advised in the joint status report before the review hearing that: "Plaintiffs' counsel is awaiting authority as to Plaintiffs' intentions in these proceedings following the Ninth Circuit's decision in *Mier v. CVS Pharmacy, Inc.*, C.D. Cal. Case No. 8:20-cv 01979 DOC-ADS." (ROA 156.) Plaintiffs' counsel made the same statement in its joint status report for the next review hearing. (ROA 164.) At the February 3, 2026 review hearing, the court continued the review hearing again, noting that "Plaintiff's counsel states the Federal Court action was dismissed but they intend to proceed with the State action." (ROA 166.) In the next joint status report, Plaintiffs' counsel represents that in response to the court's order requesting a plan if the case were to move forward, "Plaintiffs respectfully request that the Court lift the stay so that the matters could proceed," and proposed the motion to consolidate be put back on calendar, sought leave to file a consolidated complaint, and proposed a schedule for discovery and a class certification motion. (ROA 168; Coelho Dec. ¶¶ 11-14; Martinez Dec. ¶¶ 11-13.) Indeed, at the March 5, 2026 review hearing, the court noted that "Counsel for defendant states that they anticipated the case to be dismissed but are not certain on the status of the plaintiff who has failed to appear." (ROA 173.) Thus, both the court and Defendant were aware that while dismissal was anticipated, it was not a certainty. Plaintiff's counsel failed to appear for the March 5, 2026 Review Hearing, so the court issued an OSC re: Dismissal. (*Id.*) At the April 7, 2026 review hearing, the case was dismissed. "The Court and counsel discuss the case and counsel for plaintiff informs the Court that they have not been able to get consent from certain clients. The Court and counsel agree to dismiss the case as there has been no action or progress and the statute of limitations has been reached. The Court orders the entire action dismissed without prejudice." (ROA 176.) The parties dispute the substance of their communications during the time between the Ninth Circuit *Mier* decision and the dismissal of the state actions. However, Defendants did not have any evidence that Plaintiffs' counsel had authorization from all Plaintiffs to dismiss the actions. "Without his client's free and intelligent consent, after full knowledge of all the facts and circumstances, an attorney may not surrender any substantial right of his client; nor may he impair, compromise,

		or destroy his client's cause of action." (*Bice v. Stevens* (1958) 160 Cal. App. 2d 222, 232.) "While procedural matters are generally within the control of the attorney, the cause of action or the subject matter of the litigation is within the control of the client, and an attorney may not impair, compromise, settle, surrender, or destroy it without his client's consent." (*Id.*) "[D]ismissal of a cause of action by an attorney acting without any authority from his client is an act beyond the scope of his authority which, on proper proof, may be vacated *at any time.*" (*Romadka v. Hoge* (1991) 232 Cal. App. 3d 1231, 1236 [emphasis in original].) As Defendants' counsel, Anthony G. Hopp, recounts the discussion with Plaintiffs' counsel, Thiago Coelho, it was clear from their communications that Plaintiffs' counsel intended to dismiss the cases but could not dismiss the cases until authorizations were obtained from Plaintiffs: • On November 6, 2025, Mr. Coelho explained that "he needed to confer further with his clients," and "was inclined to dismiss the cases and was simply awaiting confirmation from his clients before doing so." (Hopp Dec. ¶ 3.) • On February 3, 2026, Mr. Coelho stated that "he intended to dismiss the cases and assured [Mr. Hopp] that the litigation would not proceed." (Hopp. Dec. ¶ 4.) • On February 27, 2026, "Mr. Coelho explained that he had still been unable to speak with all of his clients to obtain their consent to dismiss the cases. Without speaking to them, he could not yet voluntarily dismiss the cases. He further confirmed that he intended to dismiss the cases as soon as he secured authorization from all Plaintiffs." (Hopp Dec. ¶ 6.) As Defendants concede in reply, "[n]o one disputes that dismissal required client consent[.]" (Reply at p. 2.) "A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (CCP § 128.5(a).) "Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party. (CCP § 128.5(b)(2).) "Whether an action is frivolous is governed by an objective standard: any reasonable attorney would agree it is totally and completely

		without merit." (*Levy v. Blum* (2001) 92 Cal. App. 4th 625, 635.) "There must also be a showing of an improper purpose, i.e., subjective bad faith on the part of the attorney or party to be sanctioned." (*Id.*) "Section 128.5 requires much more than a party acting with 'no good reason' to justify an award of sanctions." (*Id.*) "There must be a showing not only of a meritless or frivolous action or tactic, but also of bad faith." (*Id*. at 635-636.) The facts do not demonstrate that Plaintiffs' counsel acted frivolously (i.e. without merit or for the sole purpose of harassing Defendants) or with the intent to cause unnecessary delay, or otherwise acted in bad faith. In litigation, "[c]ounsel face the danger of being trapped between their obligation to their clients to diligently pursue any possibly meritorious claim, and their obligation to the judicial system to refrain from prosecuting frivolous claims." (*In re Marriage of Flaherty* (1982) 31 Cal. 3d 637, 647.) "[A]n attorney is often confronted with clashing obligations imposed by our system of justice." (*Id.*) "An attorney has an obligation not only to protect his client's interests but also to respect the legitimate interests of fellow members of the bar, the judiciary, and the administration of justice." (*Id.*) "The courts have frequently disciplined attorneys who do not adequately protect their clients' interests." (*Id.*) Courts have also "rejected numerous attempts to hold attorneys liable for good faith decisions to assert their clients' claims." (*Id.*) "The strong public policy in favor of the peaceful resolution of disputes in the courts requires that attorneys not be deterred from pursuing legal remedies because of a fear of personal liability." (*Id.*) To decide otherwise "would inject undesirable self-protective reservations into the attorney's counselling role," and prevent counsel from devoting their entire energies to their clients' interests. (*Id.*) "If the issue which the attorney is called upon to decide is fairly debatable, then under his oath of office, he is not only authorized but **obligated** to present and urge his client's claim upon the court." (*Id*. [emphasis added].) Here, absent authorization from Plaintiffs to dismiss the cases, Plaintiffs' counsel was ethically obligated to continue to diligently pursue Plaintiffs' claims. Sanctions are a response to the "fear that irresponsible litigants may abuse their right of access to the judicial system." (*In re Marriage of Flaherty*, 31 Cal. 3d at 648.) To be sanctionable,

		the conduct "must be shown to have been so manifestly erroneous that no prudent attorney would have done so." (*Id.*) An action is "frivolous only when it is [done] for an improper motive—to harass the respondent or delay the effect of an adverse judgment—or when it indisputably has no merit—when any reasonable attorney would agree that the [action taken] is totally and completely without merit." (*Id.* at 650.) Conduct is not sanctionable if the party has "nothing to gain from delay," and there is no evidence of subjective bad faith. (*Id.* at 651.) The foregoing facts do not demonstrate any abuse of the right to access the judicial system, any intent to harass Defendants or delay any adverse judgment, and do not show that Plaintiffs' counsel's continued pursuit of Plaintiffs' claims was totally and completely without merit. Critically, Plaintiffs gained nothing from this delay. There is no evidence of bad faith, and thus no ground for sanctions. Based on the foregoing, this Motion for Sanctions is denied. Defendants are ordered to give notice of this ruling.
11	30-2021-01183112 Edwards Villa, Inc. vs. Ybanag Realty & Development Corp.	Plaintiff Edwards Villa, Inc.'s ("Plaintiff") Demurrer to Defendant QT General Contractor, Inc. and Quang Quoc Truong's (collectively, "QT Defendants") Second Amended Answer ("SAA") to Plaintiff's Second Amended Complaint ("SAC") is **SUSTAINED WITHOUT LEAVE TO AMEND** as to QT Defendants' 28th Affirmative Defense of Illegality/Void Contract and QT Defendants' 29th Affirmative Defense of *In Pari Delicto* – Equal Fault. The court **GRANTS** Plaintiff's requests for judicial notice of the court's ruling on QT General Contractor and Quang Quoc Truong's Motion for Summary Judgment, and the court's ruling on Edwards Villa, Inc.'s Motion for Summary Adjudication in this action. (Cal. Evid. Code § 452(d).) The court **GRANTS** QT Defendants' request for judicial notice as to the court's ruling on QT General Contractor and Quang Quoc Truong's Motion for Leave to Amend its Answer to Edwards Villa, Inc.'s Second Amended Complaint (ROA 924).

28th Affirmative Defense ("28th AD") – Illegality/Void Contract

Plaintiff demurs to QT Defendants' 28th Affirmative Defense on the grounds of collateral estoppel because any defense that Plaintiff is barred from recovery in this action because Plaintiff was allegedly unlicensed was already rejected in the court's February 2, 2026 ruling on Plaintiff's Motion for Summary Adjudication ("Plaintiff's MSA"). Plaintiff also contends that the statutory framework for contractor licensing preempts the more generalized public policy principles of barring enforcement of illegal contracts. QT Defendants argue that they can still assert a defense based on the illegality of the contract due to Plaintiff's unlicensed status so long as it is not based explicitly on Cal. Bus. & Prof. Code § 7031, which was the subject of Plaintiff's MSA.

The court stated in its March 23, 2026 Minute Order granting leave for QT Defendants to file an amended answer: "To the extent the court rejected the defenses of illegality or in pari delicto [in denying Plaintiff's MSA], it was only to the extent they were based upon EV's alleged failure to satisfy the requirements of Cal. Bus. & Prof. Code § 7031 as that was the scope of QT's 18th Affirmative Defense and EV's MSA." (ROA 924 at p. 2.) The court allowed leave to amend to add the affirmative defenses of illegality or in pari delicto in part because QT Defendants "failed to adequately plead these alternative general defenses in their original Answer[.]" (*Id.*) The court noted that "to the extent QT seeks to assert these new defenses of illegality and in pari delicto based on the contractor licensing requirements pursuant to Cal. Bus. & Prof. Code § 7031, these defenses would be futile and denied as moot as the court already ruled upon these defenses in granting EV's MSA." (*Id.* at p. 3.) The court stated that "the court declines to extend the February 2, 2026 ruling as foreclosing all defenses based on illegality or in pari delicto to the extent, they can be raised on other statutory or equitable grounds." (*Id.*).

"[A] prior determination by a tribunal will be given collateral estoppel effect when (1) the issue is identical to that decided in a former proceeding; (2) the issue was actually litigated and (3) necessarily decided; (4) the doctrine is asserted against a party to the former action or one who was in privity with such a party; and (5) the former decision is final and was made on the merits." (*Bame v. City of Del Mar* (2001) 86 Cal. App. 4th

		1346, 1364.) "The party asserting collateral estoppel bears the burden of establishing these requirements." (*Id*.) "Even if these threshold requirements are established, res judicata will not be applied 'if injustice would result or if the public interest requires that relitigation not be foreclosed.'" (*Id*.) Here, res judicata/collateral estoppel would apply to any affirmative defense concerning the illegality of the contract between the parties based on Plaintiff's lack of license pursuant to Cal. Bus. & Prof. Code § 7031, which was adjudicated in the court's February 2, 2026 Minute Order. Only if the affirmative defense of illegality of the contract is based on other valid grounds would it be available to QT Defendants. QT Defendants' 28th AD states in relevant part: "At all relevant times, Plaintiff was not exempt from licensure and not duly licensed as required to perform such activities and nevertheless undertook to perform and contract for such work through others in violation of California's contractor licensing laws. To the extent Plaintiff's claims seek to enforce rights or recover damages arising from or dependent upon such unlawful conduct, those claims are barred." "Where a contract has but a single object, and such object is unlawful, whether in whole or in part, or wholly impossible of performance, or so vaguely expressed as to be wholly unascertainable, the entire contract is void." (Cal. Civ. Code § 1598.) However, cases have made clear that generally, "a court will not impose additional penalties for [noncompliance] with the licensing requirement" outside of the statutory framework for contractor licensing requirements. (*MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal. 4th 412, 437.) Where "the contract's object is not inherently wrongful or contrary to sound public policy, it will be deemed void 'only if it falls within the area which the Legislature intended as part of deterrence necessary to protect the public interest.'" (*Id*.) The Contractors' State License Law's ("CSLL") purpose is "to protect the administration of the licensing law as well as to protect the public from incompetent and untrustworthy artisans." (*Id*.) The legislature "reserved the bar against civil suit for cases where the contractor was unlicensed during [] performance [of the contract]." (*Id*. at 437-438.) "[T]he civil bar should not be expanded beyond its explicit legislative bounds." (*Id*. at 438.) Generally, "contracts in violation of regulatory statutes are invalid." (*Id*.) However,

		the general rule "will not be applied where the penalties imposed by the Legislature exclude by implication the additional penalty of holding the contract void." (*Id*. at 438-439.) QT Defendants argue that the contract between Plaintiff and QT Defendants is illegal and unenforceable pursuant to Civil Code § 1598 because it is unlawful under Cal. Bus. & Prof. Code § 7028(a) for an unlicensed contractor to act as a contractor. This is no different from their argument that Plaintiff is barred from recovery pursuant to Cal. Bus. & Prof. Code § 7031 because Plaintiff is an unlicensed contractor. The legislature spelled out the requirements for when an unlicensed contractor's contract is unenforceable in Cal. Bus. & Prof. Code § 7031, and the court already ruled that those requirements have not been met as to Plaintiff. The legislature also set forth the consequences for acting as an unlicensed contractor generally in Cal. Bus. & Prof. Code § 7028(a), which is a misdemeanor punishable by fine or imprisonment. "[T]he statute making the conduct illegal, in providing for a fine or administrative discipline, *excludes by implication* the additional penalty involved in holding the illegal contract unenforceable." (*MW Erectors, Inc*., 36 Cal. 4th at 436.) This language is taken from a case cited by QT Defendants, which also notes that courts are "not free to weigh" facts to ascertain the enforceability of an allegedly illegal contract as "Section 7031 represents a legislative determination that the importance of deterring unlicensed persons from engaging in the contracting business outweighs any harshness between the parties, and that such deterrence can best be realized by denying violators the right to maintain any action for compensation in the courts of the state." (*Lewis & Queen v. N. M. Ball Sons* (1957) 48 Cal. 2d 141, 151.) Accordingly, the case law makes it clear that the CSLL preempts any illegality defense based on the unlicensed status of a plaintiff. Based on the foregoing, the court SUSTAINS WITHOUT LEAVE TO AMEND Plaintiff's Demurrer to QT Defendants' 28th AD, as no amendment would cure the defects of the 28th AD. **29th Affirmative Defense ("29th AD") – *In Pari Delicto* – Equal Fault**

QT Defendants' 29th AD states in relevant part: "Defendants incorporate by reference the allegations set forth in the Twenty-Eighth Affirmative Defense (Illegality / Void Contract) as though fully stated herein. . . . Plaintiff's claims are barred, in whole or in part, by the doctrine of in pari delicto. To the extent any unlawful or improper conduct occurred in connection with the project, Plaintiff was an active and knowing participant in such conduct. Plaintiff undertook to coordinate, direct, and manage construction activities, including the selection and supervision of subcontractors and trades, and any alleged defects or damages arise in whole or in part from Plaintiff's own conduct. Accordingly, to the extent Plaintiff's claims are based on or arise from conduct in which Plaintiff was an equal or greater participant, Plaintiff is barred from obtaining relief."

"The doctrine of *in pari delicto* dictates that when a participant in illegal, fraudulent, or inequitable conduct seeks to recover from another participant in that conduct, the parties are deemed *in pari delicto,* and the law will aid neither, but rather, will leave them where it finds them." (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal. App. 4th 1138, 1143 n.1.)

Plaintiff argues that QT Defendants have inadequately pled facts concerning the parties' economic strength, but cites to a CACI instruction for the *in pari delicto* defense in the anti-trust context, which is inapplicable here.

Nevertheless, Plaintiff points out that the unlawful conduct that is the basis for the 29th AD is Plaintiff's unlicensed contractor status. QT Defendants concedes as much in their opposition papers. (*See* Opp. at p. 8 ["EV's direction of the work as an unlicensed contractor was a substantial factor in the damages claimed," and "[t]he unlawful conduct is unlicensed contracting, the same conduct pled in the Twenty-Eighth Defense and incorporated by reference."].) Thus, as this defense (like the 28th AD) is also based on Plaintiff's alleged unlicensed contractor status, this *in pari delicto* defense is also preempted by the CSLL.

The court SUSTAINS WITHOUT LEAVE TO AMEND Plaintiff's Demurrer to QT Defendants' 29th AD, as no amendment would cure the defects of the 29th AD.

Plaintiff is ordered to give notice of this ruling.

12	30-2024-01380394 Martinez vs. Legends Hospitality, LLC	**Off Calendar**
14	30-2021-01234635 Bren vs. Emerald Bay Community Association	**<u>I. Motion to Compel Inspection of Property</u>** Defendant Emeral Bay Community Association's Motion to Compel Inspection of Property is **GRANTED**. Defendant's Request for Monetary Sanctions is **DENIED**. The court **OVERRULES** Plaintiffs' objection to the declaration of Joshua Shayne, Defendant's counsel, as to the hours he spent on this Motion, as the objections go to the merits of the statements and not their admissibility. On February 19, 2026, an inspection of Plaintiffs' property was noticed for April 6, 2026. (Shayne Dec., Ex. B.) Plaintiffs served objections to the notice on March 24, 2026. (*Id*., Ex. C.) The court finds that Plaintiffs' objections are without merit: • <u>Overbroad vague and ambiguous; burdensome, harassing and oppressive; not calculated to lead to the discovery of admissible evidence</u>: Here, Plaintiffs have clearly put at issue the condition of their property and the construction around it by Defendant. Plaintiffs allege that Defendant's regrading of Lot H has interfered with Plaintiffs' use and enjoyment of their property due to concerns and issues related to privacy, security and the risk of slope failure, and allege a loss of property value as a result. An inspection of the subject property and an appraisal is necessary for Defendant to evaluate Plaintiffs' claims and to prepare its defense. Defendant's reasonable request is not vague, ambiguous, burdensome, or harassing. • <u>Invasion of Plaintiffs' privacy</u>: Defendant's need for the discovery outweighs the right to privacy especially as Plaintiffs have put their property at issue in this litigation.

- Unavailability of Plaintiffs/Plaintiffs' counsel: Plaintiffs have now offered alternative dates.
- Fails to identify the purpose and scope of the inspection: This is unavailing as the demand clearly states the purpose of the inspection is for "inspecting, surveying, measuring, photographing and videotaping inside and outside the Property to determine the nature and extent of Plaintiffs' claimed damages asserted against EBCA, including but not limited to Plaintiff's claims for diminution in value of their Property as asserted in the Complaint."
- Fails to identify the individuals and/or entities who will attend or conduct the inspection, including their roles: This is unavailing as the demand states that the inspection "will be performed by EBCA's attorneys of record and EBCA's expert."
- The time allotted for the inspection is unduly lengthy and therefore, burdensome for Plaintiffs: The four hours estimated for the inspection in the demand is reasonable and not burdensome.

In their opposition, Plaintiffs state that they now agree to an inspection of their property notwithstanding their privacy concerns and other objections, and offer alternative dates for the inspection. However, Defendant states that there has been no agreement between the parties as to who can attend, how long, or the scope of the inspection. The court notes that Plaintiffs object to the inspection of interior rooms, claiming privacy concerns and argue that those rooms are irrelevant to this action. However, as Plaintiffs have put at issue the value of their property, an inspection of the entire property is properly within the scope of discovery.

As the parties have not agreed on the scope of the inspection and its participants, the court grants Defendants' Motion to Compel Inspection of Plaintiffs' Property. IT IS ORDERED THAT on a mutually agreeable date within twenty (20) days of this ruling, Plaintiffs shall allow Defendant's counsel (including any co-counsel) and Defendant's expert to inspect Plaintiffs' entire property for up to four hours.

However, the court denies Defendant's request for monetary sanctions against Plaintiffs and their counsel. The court finds that in light of Plaintiffs' privacy concerns and concerns regarding the scope of the requested inspection, Plaintiffs

		"acted with substantial justification" in opposing this Motion. (CCP § 2031.320(b).) Defendant is ordered to give notice of this ruling to Plaintiffs. **II. Motion for Summary Adjudication** Defendant Emerald Bay Community Association's ("Defendant") Motion for Summary Adjudication is **GRANTED** as to the Second Cause of Action for Nuisance and Third Cause of Action for Breach of Governing Documents. The court **OVERRULES** Defendant's objections to the Declaration of Cary Bren. The court **SUSTAINS** Defendant's objections to the Declaration of Michael Brunson, as his expert opinion lacks foundation, is speculative, and is admittedly based on an incomplete investigation. (Brunson Dec. ¶ 10 ["[I]t is my opinion that the alleged conditions are of a type that **may** be recognized by market participants and **may** result in a measurable impact on the market value of the Subject Property."] [emphasis added]; *id*. ¶ 11 [opining that "the alleged conditions **may** have had, and **may** continue to have, an adverse effect on the market value of the Subject Property"] [emphasis added].) "[A]n expert's opinion based on assumptions of fact without evidentiary support . . . or on speculative or conjectural factors . . . has no evidentiary value . . . and may be excluded from evidence." (*People v. Yates* (2018) 25 Cal. App. 5th 474, 487; *Howard Ent., Inc. v. Kudrow* (2012) 208 Cal. App. 4th 1102, 1115; *see also People v. Fortin* (2017) 12 Cal. App. 5th 524, 531 ["The trial court has broad discretion to determine whether proposed expert testimony lacks the necessary foundation to be reliable, relevant and admissible."].) Furthermore, even if the court had overruled the objections and admitted Brunson's declaration, the court's ruling would still be the same as the declaration only establishes a diminution in the value of the property, not the substantial interference with its use or enjoyment which is necessary to sustain a cause of action for nuisance. (See *Oliver v. AT&T Wireless Services* (1999) 76 Cal.App.4th 521, 534 (1999) ("A diminution in value does not interfere with the present use of property and cannot alone constitute a nuisance"); *Koll-Irvine Center*

Property Owners Ass'n v. County of Orange (1994) 24 Cal.App.4th 1036 (explaining that diminution in property value is an element of damages, not the interference with a property right necessary to constitute a nuisance)).

The court declines to rule on Defendant's objections to the statements made in Plaintiffs' Undisputed Material Facts as those are not objections to evidence.

In this action, Plaintiffs allege that "[i]n or about 2019 to early 2021, [Defendant] as part of a public project to extend a sewer line, regraded and performed other work to the rear slope to a condition that is materially different and much steeper than the prior natural grade of the slope." (Compl. ¶ 10.) "[T]he slope was regraded to include a bench area that is inconsistent with the natural grade, may degrade the stability of the slope, and provides a viewing area into Plaintiffs' rear yard." (*Id*.) Plaintiffs also allege that Defendant "recently planted vegetation along the slope that is inconsistent with existing plantings and detracts from the natural beauty of the area." (*Id*.) Plaintiffs assert that "[a]s a direct and proximate result of this improper regrading of the slope and other issues identified above, there is an increased risk of harm to property or persons, it will be more difficult for Plaintiffs to access the beach area as the natural slope has been materially modified and the bench area at the top of the slope impacts both access and Plaintiffs' privacy." (Compl. ¶ 11.) Plaintiffs also allege that Defendant "did not properly engineer or plan the sewer extension and regrading work, and did not obtain the proper approvals, including the appropriate approvals and permits from the California Coastal Commission." (Compl. ¶ 17.) Defendant refers to the subject slope area as "Lot H." (Mot. at p. 3.)

As a threshold matter, the court will not take into consideration Plaintiffs' new factual allegations, evidence and arguments regarding the steeper step from Plaintiffs' property to the beach, or any drainage and lighting issues asserted by Plaintiffs in opposition to this Motion, as these issues are not pled in the Complaint. "The pleadings delimit the issues to be considered on a motion for summary judgment." (*Laabs v. City of Victorville* (2008) 163 Cal. App. 4th 1242, 1253.) "[T]he plaintiff cannot bring up new, unpleaded issues in his or her opposing papers." (*Id*.) "To create a triable issue of material fact, the opposition evidence must be directed to issues raised by the pleadings." (*Id*.) "If the opposing party's

		evidence would show some factual assertion, legal theory, defense or claim not yet pleaded, that party should seek leave to amend the pleadings before the hearing on the summary judgment motion." (*Id.*) "[A] moving party need not refute liability on some theoretical possibility not included in the pleadings." (*Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal. App. 5th 426, 442.) "[N]ew factual issues presented in opposition to a motion for summary judgment should [only] be considered if the controlling pleading, construed broadly, encompasses them." (*Id.* at 443.) "In making this determination, courts look to whether the new factual issues present different theories of recovery or rest on a fundamentally different factual basis." (*Id.*) Here, even construing the Complaint broadly, the steep step, drainage and lighting issues are not simply new theories; they are a completely new factual bases for liability that were not pled in the Complaint. **<u>Second Cause of Action for Nuisance</u>** Defendant seeks summary adjudication of the Second Cause of Action for Nuisance on the grounds that Plaintiffs purportedly do not possess, and cannot reasonably obtain, the needed evidence to establish that they suffered an unreasonable and substantial interference with their use and enjoyment of their home. Along with the allegations stated above, Plaintiffs' Second Cause of Action for Nuisance alleges: "The Association and Service District have a duty to refrain from actions that will unreasonably interfere with the Plaintiffs' comfortable use and enjoyment of the Property." (Compl. ¶ 22.) Plaintiffs further allege that Defendant's "actions with respect to the sewer line work, regrading of the slope, creation of the bench area, etc., are directly and proximately interfering with and obstructing the Plaintiffs' comfortable use and enjoyment of the Property, which constitutes a nuisance pursuant to Civil Code section 3479 et seq." (*Id.* ¶ 23.) The relevant facts and evidence to the Nuisance claim are as follows: **<u>Slope/Lot H/Bench Area Pathway</u>** • At the time Plaintiffs purchased their property, Plaintiff Cary Bren was aware that one of the purposes of the slope included walkway access. (Def.'s Evid., Ex. 6 at p. 19:10-18.)

		- The pathway created by Defendant "is open to all 2,000 people that live within Emerald Bay[.]" (Krolikowski Dec. ¶ 7, Ex. E [October 26, 2022 Deposition of Toni Hughes, 127:1-22].) - Plaintiff Cary Bren testified to a "[l]ack of privacy with the bench path that has been created at the top of the slope[.]" (Krolikowsi Dec., Ex. D at pp. 26:7-15.) - Plaintiff Cary Bren also claims that "increased access to [Plaintiffs'] home provided by the use of the pathway by anyone in the EBCA and theirs guests, ***has caused and continues to cause a great deal of fear, anxiety, and stress for myself, my wife, and my children***." (Bren Dec. ¶ 9 [emphasis in original].) Bren claims that "anyone that uses the pathway created by the EBCA can now view into my rear [yard], my home and certain private spaces." (*Id.*) - Plaintiff Cary Bren claims that he "observed Mr. Rebeil walking along the pathway while using his phone to take videos and/or photographs of [Plaintiffs'] property, including [Plaintiffs'] backyard and into the private areas of [Plaintiffs'] home." (Bren Dec. ¶ 6.) One time, Bren "personally witnessed Mr. Rebeil stop behind [the] property, crouch down to obtain a better view, and extend his arm through my back fence for the apparent purpose of capturing audio and/or visual recordings and photographs of [Plaintiffs'] rear yard and other private areas." (*Id.* ¶ 7.) - The photographs of Plaintiffs' home from the beach and the pathway created by Defendant show the same features of Plaintiffs' home, just at different angles. (Defs.' Evid., Ex. 17 [Exhibits 35 and 36 to the transcript].) - Plaintiff Cary Bren admits that the beach where he lives (the south end) is "one of the most visible areas in Emerald Bay, and used by many owners and their guests." (Def.'s Evid., Ex. 7 at pp. 146:21-25, 147:1-3; *id.* [Ex. 20 to the transcript].) - Plaintiff Cary Bren states that from the beach, a person looking at Plaintiffs' property could see "the landscaping, you would see the slope and the wall here, you would see the lights and the exterior here in the loge, arches, glass at the back doors, doors and glass at the bedroom level, master bedroom, master bath, stairs, stairs behind the garage." (Defs.' Evid., Ex. 17 at p. 204:6-11.)

		• Plaintiff Cary Bren stated during deposition that he is not aware of any cracked building material on his structure caused by any slope movement. (Def.'s Evid., Ex. 15 at 63:11-17.) **<u>Sewer Line/Manhole</u>** • Plaintiff Cary Bren claims that the sewer line and manhole placed behind his property has caused a diminution in value to his property. (Def.'s Evid., Ex. 12 at p. 195:1-14; Krolikowski Dec., Ex. D at pp. 122:23-25].) • Plaintiff Cary Bren admits that there are no odors coming from the sewer lateral connection. (Def.'s Evid., Ex. 14 at p. 63:4-7.) **<u>Ice Plants</u>** • Plaintiff Cary Bren stated that "the slope has ice plants that start at the bottom that now has taken over quite a bit of the slope, and it's highly invasive, and, I think, a risk to the stabilization of the slope," but also stated that he is not aware of the ice plant damaging his property and has no knowledge of the ice plants causing stability problems with the slope. (Def.'s Evid., Ex. 21 at pp. 27:1-4; *id*., Ex. 22 at pp. 62:7-9, 192:1-9.) **<u>Damages</u>** • Plaintiff Cary Bren states: "As an owner of the Subject Property, and based upon my review of market data and sales, the loss of use and/or diminution in value to the Subject is likely in the hundreds of thousands of dollars, if not more." (Bren Dec. ¶ 14.) "Further, to the extent I have to undertake efforts to reconstruct a new rear step or steps, install more landscaping or other privacy protection measures and address any water and erosion issues caused by other draining into the slope, those costs will likely be in the tens of thousands of dollars, if not more." (*Id*.) The court finds that the evidence fails to raise a triable issue of fact to demonstrate that any of Defendant's alleged conduct in the Complaint constitutes a nuisance. "Anything which is injurious to health . . . or is . . . an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property . . . is a nuisance." (Cal. Civ. Code § 3479.) However, "every annoyance or disturbance of a landowner from the use made of property by a neighbor does not

constitute a nuisance.” (*Schild v. Rubin* (1991) 232 Cal. App. 3d 755, 764.) “The question is not whether the plaintiffs have been annoyed or disturbed ... but whether there has been an injury to their legal rights.” (*Id*.) “People who live in organized communities must of necessity suffer some inconvenience and annoyance from their neighbors and must submit to annoyances consequent upon the reasonable use of property by others.” (*Id*.) In evaluating a nuisance claim, courts should take into consideration the following:

> Life in organized society and especially in populous communities involves an unavoidable clash of individual interests. Practically all human activities unless carried on in a wilderness interfere to some extent with others or involve some risk of interference, and these interferences range from mere trifling annoyances to serious harms. It is an obvious truth that each individual in a community must put up with a certain amount of annoyance, inconvenience and interference and must take a certain amount of risk in order that all may get on together. The very existence of organized society depends upon the principle of “give and take, live and let live,” and therefore the law of torts does not attempt to impose liability or shift the loss in every case in which one person's conduct has some detrimental effect on another. Liability for damages is imposed in those cases in which the harm or risk to one is greater than he ought to be required to bear under the circumstances, at least without compensation.

(*Wilson*, 21 Cal. App. 5th at 803.)

“[T]o proceed on a private nuisance theory the plaintiff must prove an injury specifically referable to the use and enjoyment of his or her land.” (*Monks v. City of Rancho Palos Verdes* (2008) 167 Cal. App. 4th 263, 302.) First, a nuisance claim requires “proof that the invasion of the plaintiff's interest in the use and enjoyment of the land was substantial, i.e., that it caused the plaintiff to suffer ‘substantial actual damage.’” (*Id*. at 303.) This includes “’harm of importance’ and a ‘real and appreciable invasion of the plaintiff's interests' . . . and an invasion that is ‘definitely offensive, seriously annoying or intolerable[.]’” (*Id*.) “The degree of harm is to be judged by an objective standard, i.e., what effect would the invasion have on persons of normal health and sensibilities living in the same community? ... ‘If normal persons in that locality would not be substantially annoyed or disturbed by the situation, then the

		invasion is not a significant one, even though the idiosyncrasies of the particular plaintiff may make it unendurable to him.'" (*Id.*) (emphasis added) Second, a nuisance claim requires proof that the interference be unreasonable, "i.e., it must be 'of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.'" (*Monks*, 167 Cal. App. 4th at 303.) "The primary test for determining whether the invasion is unreasonable is whether the gravity of the harm outweighs the social utility of the defendant's conduct." (*Id.*) "[T]he standard is objective: the question is not whether the particular plaintiff found the invasion unreasonable, but 'whether reasonable persons generally, looking at the whole situation impartially and objectively, would consider it unreasonable.'" (*Id.*) "[A]n expert opinion couched in terms of [what] 'should' [happen] is not sufficiently 'emphatic' to be given any weight." (*Id*. at 307.) Unreasonableness "is a question of fact: 'Fundamentally, the unreasonableness of intentional invasions is a problem of relative values to be determined by the trier of fact in each case in the light of all the circumstances of that case.'" (*Wilson v. S. California Edison Co.* (2018) 21 Cal. App. 5th 786, 803.) "[T]he essence of a private nuisance is its interference with the use and enjoyment of land." ((*Oliver v. AT&T Wireless Servs.* (1999) 76 Cal. App. 4th 521, 534 [affirming order granting defendant's motion for summary adjudication of a nuisance claim regarding a neighboring cell tower that did not infringe on plaintiff's enjoyment or use of plaintiff's property].) "The activity in issue must 'disturb or prevent the comfortable enjoyment of property' . . . such as smoke from an asphalt mixing plant, noise and odors from the operation of a refreshment stand, or the noise and vibration of machinery." (*Id.*) "When an alleged nuisance "cannot be seen from anywhere inside their house, except from a single window," it is not a nuisance because it "has not disrupted [the plaintiffs'] use of their property." (*Id.*) Further, "the displeasing appearance of an otherwise lawful structure on one side of a boundary cannot be deemed to substantially interfere with the enjoyment of that which is on the other side of the boundary without significantly diminishing the rights associated with both sides of the boundary." (*Id*. at 535.) When there is no physical invasion of a plaintiff's property, the courts have deemed "fear of a catastrophic accident" that

		causes "diminution of the value and usefulness of [plaintiff's] property and [] mental anguish," insufficient to claim nuisance. (*Koll-Irvine Ctr. Prop. Owners Assn. v. Cnty. of Orange* (1994) 24 Cal. App. 4th 1036, 1041.) "[A] private nuisance action cannot be maintained for an interference in the use and enjoyment of land caused solely by the fear of a future injury." (*Id*. at 1041-1042.) There must be evidence of "an actual physical invasion or damage to [plaintiffs] or their properties." (*Id*. at 1042.) "[S]uch things as fear, anxiety, and emotional distress which are not caused by an interference with a specific private property right and which are common to the general population will not support a private action for nuisance." (*Id*.) First, the evidence of nuisance based on the change in the slope and the planting of ice plants is based solely on the fear of a future injury, which is insufficient to establish a nuisance. Plaintiffs rely solely on Plaintiff Cary Bren's speculative lay opinion. Evidence of "uncertainty with respect to the stability" of the subject land is insufficient, rather there must be evidence of a "reasonable probability of significant harm[.]" (*Monks*, 167 Cal. App. 4th at 306.) Second, Plaintiffs claim of nuisance based on an invasion of privacy fails to raise a triable issue of fact as there is no evidence of substantial and unreasonable interference with Plaintiffs' use and enjoyment of their property. The only evidence in support of this theory is Plaintiff Cary Bren's claim that "increased access to [Plaintiffs'] home provided by the use of the pathway by anyone in the EBCA and theirs guests, ***has caused and continues to cause a great deal of fear, anxiety, and stress for myself, my wife, and my children***." (Bren Dec. ¶ 9 [emphasis in original].) However, the evidence demonstrates that such interference is not substantial or unreasonable: • At the time Plaintiffs purchased their property, Plaintiff Cary Bren was aware that one of the purposes of the slope included walkway access. (Def.'s Evid., Ex. 6 at p. 19:10-18.) • The photographs of Plaintiffs' home from the beach and the pathway created by Defendant show the same features of Plaintiffs' home, just at different angles. (Defs.' Evid., Ex. 17 [Exhibits 35 and 36 to the transcript].) • Plaintiff Cary Bren admits that the beach where he lives (the south end) is "one of the most visible areas in Emerald Bay, and used by many owners and their

		guests." (Def.'s Evid., Ex. 7 at pp. 146:21-25, 147:1-3; *id*. [Ex. 20 to the transcript].) • Plaintiff Cary Bren states that from the beach, a person looking at Plaintiffs' property could see "the landscaping, you would see the slope and the wall here, you would see the lights and the exterior here in the loge, arches, glass at the back doors, doors and glass at the bedroom level, master bedroom, master bath, stairs, stairs behind the garage." (Defs.' Evid., Ex. 17 at p. 204:6-11.) • The photographs attached at Exhibit A of Plaintiff Cary Bren's declaration show that the direct eyeline at the pathway only looks into a sealed off, uninhabited area of Plaintiffs' property and is otherwise the same perspective as a person standing from the beach. (Bren Dec., Ex. A.) Based on the foregoing, Plaintiffs knew that that there could be a walkway constructed behind their property on the slope, and their home is already exposed to the public eye and to an even greater degree not only to the residents and guests of Emerald Bay, but to any person who visits the beach behind Plaintiffs' property. Thus, the alleged interference is neither substantial nor unreasonable. Accordingly, the construction of the pathway cannot, as a matter of law, constitute a nuisance. Third, Plaintiffs' claim of nuisance based on the existence of the manhole behind Plaintiffs' property and alleged diminution of value of Plaintiffs' property is also without merit. The only complaint as to the manhole is that it is unsightly, is insufficient to qualify as a nuisance. "[T]he displeasing appearance of an otherwise lawful structure" cannot constitute a nuisance, and "[a] diminution in value does not interfere with the present use of property and cannot alone constitute a nuisance." (*See Oliver*, 76 Cal.App. 4th 525, 534.) Based on the foregoing, Plaintiffs have not raised a triable issue of fact as to a cognizable nuisance. The court grants Defendant's Motion for Summary Adjudication of the Second Cause of Action. **<u>Third Cause of Action for Breach of Governing Documents</u>** Plaintiffs' Third Cause of Action for Breach of Governing Documents alleges that Defendant's "Governing Documents, collectively, require the Association to maintain and operate

		various portions of the Emerald Bay community (including any common areas) in an appropriate manner and condition, to not create a nuisance that results in an interference with the comfortable use and enjoyment of its member's property, and to perform activities in such a way that will not negatively impact the property rights of its members." (Compl. ¶ 27.) Plaintiffs allege that "[b]ased upon the allegations set forth [in the Complaint], the Association breached the above obligations." (*Id*. ¶ 28.) Defendant seeks summary adjudication of the Third Cause of Action for Breach of Governing Documents on the grounds that Plaintiffs do not possess, and cannot reasonably obtain, the evidence needed to establish that there was any breach. Defendant seeks summary adjudication on the grounds that Plaintiffs' Complaint fails to specify what provisions of the Governing Documents were breached by Defendant, because "[i]n a Special Interrogatory propounded on Plaintiff Cary Bren, he was asked to specify which provisions of the "Governing Documents" were breached by EBCA," and "[i]n his response, Plaintiff Carey Bren objected and did not substantively respond," and because Plaintiffs have no evidence of breach. (Def.'s Evid., Ex. 23 [Response to Special Interrogatory No. 55].) "[A] moving defendant may rely on factually devoid discovery responses to shift the burden of proof" for a motion for summary judgment or adjudication "pursuant to section 437c." (*Union Bank v. Superior Ct.* (1995) 31 Cal. App. 4th 573, 590.) "Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact." (*Id*.) "A plaintiff's 'factually devoid' discovery responses may be used to shift the burden of production onto the plaintiff when the 'logical inference' is that the plaintiff possesses no facts to support his or her claims." (*Bayramoglu v. Nationstar Mortg. LLC* (2020) 51 Cal. App. 5th 726, 733.) However, when the plaintiff responds by reference to external documents or asserts an objection (even if meritless) instead of providing facts in the discovery response, there is no logical inference that plaintiff has no facts to support his or her claims. (*Id*. at 733-734.) Here, Defendant's reliance of Plaintiffs' "factually-devoid" discovery response to seek summary adjudication is without

		merit. Plaintiffs' assertion of an objection rather than providing a substantive response, is not a factually-devoid response and does not lead to the logical inference that Plaintiffs have no evidence to support their claim. Nevertheless, outside of that argument, Defendant demonstrates that Plaintiffs do not have and cannot obtain evidence to support the Third Cause of Action as pled in the Complaint. Plaintiffs assert that the amended CCRs for the community state that "[a]ny violation of the Governing Documents, as well as a violation of any law within the Development, is declared to be and shall constitute a nuisance." (Krolikowski Dec., Ex. F § 13.4.) However, instead of providing evidence of a nuisance, Plaintiffs improperly rely on their allegations in the complaint that Defendant is required to "maintain and operate various portions of the Emerald Bay community (including any common areas) in an appropriate manner and condition, to not create a nuisance that results in an interference with the comfortable use and enjoyment of its member's property, and to perform activities in such a way that will not negatively impact the property rights of its members." (Compl. ¶ 27.) Plaintiffs provide no evidence of this requirement. Moreover, as discussed above, the plaintiffs have not established a nuisance on the property. Thus, to the extent that in some unidentified portion the CCR's require the defendant to maintain the property to avoid a nuisance, there can be no violation of this portion with a nuisance not set forward. The only evidence of Defendant's alleged violations of Governing Documents provided by Plaintiffs are violations regarding the drainage and lighting issues. As stated above, the drainage and lighting issues are outside the scope of the Complaint and cannot be considered for purposes of summary adjudication. As Defendants have demonstrated that Plaintiffs have no evidence to support their Third Cause of Action, and Plaintiffs have not demonstrated that any such evidence can be obtained, the court grants Defendant's Motion for Summary Adjudication of the Third Cause of Action. Defendant is ordered to give notice of this ruling to Plaintiffs.